3923

Executive Order

AMENDING THE ORDER OF OCTOBER 23, 1923, AUTHORIZING THE ALIEN PROPERTY CUSTODIAN TO SELL CERTAIN PROPERTY AT PRIVATE SALE.

By virtue of the authority vested in me by an Act of Congress entitled "An Act to define, regulate, and punish trading with the enemy and for other purposes", approved October 6, 1917, known as the "Trading with the Enemy Act", and the Amendment to such Act embodied in "An Act making appropriations to supply urgent deficiencies in the appropriations for the fiscal year ending June 30, 1918, and prior fiscal years on account of war expenses and for other purposes", approved March 28, 1918, and the Amendment to such Act embodied in "An Act making appropriations to supply deficiencies in appropriations for the fiscal year ending June 30, 1919, and prior fiscal years on account of war expenses, and for other purposes", approved November 4, 1918, and all other amendments thereto, to make certain orders such as that herein contained, I hereby, in the public interest, make the following determination and order:

The Alien Property Custodian is hereby authorized to sell at private sale, at such time and place as to him or to his authorized agent may seem advisable, without public or other advertisement, Two Thousand, Ninety-eight and twenty-one hundredths (2098.21) shares of Stoehr & Sons, Inc., a holding company, under which said shares were heretofore seized by the Alien Property Custodian under the provisions of said Act, for the sum of One Million, Two Hundred Eighteen Thousand Dollars ($1,218,000).

My reasons for the foregoing determination and order are:

(a) It appears from the following analysis of the last audit of said Stoehr & Sons, Inc. that the shares of said corporation have no market value in excess of the value of said Botany Worsted Mills stock at Two Hundred Dollars ($200) per share.

Analysis of Balance Sheet of Last Audit

of

STOEHR & SONS, INC.

ASSETS

Cash in Banks	$281,554.04
Accrued Interest Receivable	1,594.89
Hans Stoehr Estate	200,000.00
U. S. Liberty Bonds	226,037.38
Botany Worsted Mills Bonds	6,720.00
Botany Worsted Mills Stock, 6090 shares (See Note 1.)	
Kammgarnspinnieri Stoehr & Co. Leipsig	14,520.00
Norddeutsche Wolkammerei	14,760.00
Tittel & Krueger	1,080.00
Deferred Items—Installment on purchase 14,900 shares	5,000.00
Prepaid Taxes	781.27
Total	$752,047.58

LIABILITIES

Accrued Interest on Bonds	$10,180.00
Commission in Suspense	8,804.89
Additional Government Tax Assessed	624,946.34
6% Gold Bonds	509,000.00
Total	$1,152,931.23
Difference—(Amount by which the assets exclusive of 6,090 Botany Worsted Mills shares fail to equal the liabilities)	$400,783.63

Note 1. 400 shares of the 6090 shares are returnable from U. S. Government under a claim filed by John P. Murray for Stoehr & Sons, Inc.

(b) Under a certain Executive Order made by me on October 23, 1923, the Alien Property Custodian was authorized to sell Six Thousand Ninety (6090) shares of Botany Worsted Mills stock, a corporation of the State of New Jersey, represented by Two Thousand, Ninety-eight and twenty-one hundredths shares of Stoehr & Sons, Inc., a holding company, and it was the intent and purpose of said order that the said sale of Six Thousand Ninety (6090) shares of Botany Worsted Mills stock should be accomplished by the sale of said Two Thousand, Ninety-eight and twenty-one hundredths (2098.21) shares of Stoehr & Sons, Inc.

CALVIN COOLIDGE

THE WHITE HOUSE,
November 7, 1923.

[No. 3923.]

GOVERNMENT PRINTING OFFICE